

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX-----  
OUMAR KONIPO,

Plaintiff,

-against-

CITY OF NEW YORK; NEW YORK CITY  
POLICE DEPARTMENT; POLICE DETECTIVE  
DENISE INGA, Tax # [REDACTED]; POLICE  
DETECTIVE STARLING BALLY, Shield # [REDACTED];  
SUPERVISOR DETECTIVE SQUAD ROUSE  
THOMAS, Tax # [REDACTED]; SERGEANT CRUZ, Tax  
# [REDACTED]; SCHOOL SAFETY AGENT PORTER  
DAVID, Tax # [REDACTED]; POLICE  
ADMINISTRATIVE AIDE SWEET, Tax # [REDACTED],  
AND "JOHN DOES 1-3" PERSONS EMPLOYED  
BY THE CITY OF NEW YORK,Defendants.  
-----

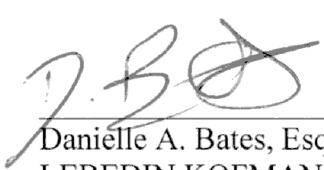
To the above named Defendants:

**YOU ARE HEREBY SUMMONED** to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York  
September 18, 2020.**SUMMONS**

Index No.: \_\_\_\_\_

Date Filed: \_\_\_\_\_

Plaintiff designates  
Bronx County  
as the place of trialThe basis of venue is based on  
CPLR § 504(3)  
\_\_\_\_\_  
Danielle A. Bates, Esq.  
LEBEDIN KOFMAN, LLP  
*Attorneys for Plaintiff*  
OUMAR KONIPO  
26 Broadway, 27<sup>th</sup> Flr  
New York, New York 10004

(212) 500-3273

Defendants' Addresses:

**CITY OF NEW YORK**

100 CHURCH STREET  
NEW YORK, NEW YORK 10007

**NEW YORK CITY POLICE DEPARTMENT**

1 POLICE PLAZA  
NEW YORK, NEW YORK 10038

**POLICE DETECTIVE DENISE INGA**

TAX # [REDACTED]

NEW YORK CITY POLICE DEPARTMENT – 108<sup>th</sup> PRECINCT  
547 50TH AVENUE  
LONG ISLAND CITY, NEW YORK 11101

**POLICE DETECTIVE STARLING BALLYS**

SHIELD # [REDACTED]

NEW YORK CITY POLICE DEPARTMENT – 108<sup>th</sup> PRECINCT  
547 50TH AVENUE  
LONG ISLAND CITY, NEW YORK 11101

**SUPERVISOR DETECTIVE SQUAD ROUSE THOMAS**

Tax # [REDACTED]

NEW YORK CITY POLICE DEPARTMENT – 108<sup>th</sup> PRECINCT  
547 50TH AVENUE  
LONG ISLAND CITY, NEW YORK 11101

**SERGEANT CRUZ**

TAX # [REDACTED]

NEW YORK CITY POLICE DEPARTMENT – 108<sup>th</sup> PRECINCT  
547 50TH AVENUE  
LONG ISLAND CITY, NEW YORK 11101

**SCHOOL SAFETY AGENT PORTER DAVID,**

TAX # [REDACTED]

NEW YORK CITY POLICE DEPARTMENT – 108<sup>th</sup> PRECINCT  
547 50TH AVENUE  
LONG ISLAND CITY, NEW YORK 11101

**POLICE ADMINISTRATIVE AIDE SWEET**

TAX # [REDACTED]

NEW YORK CITY POLICE DEPARTMENT – 108<sup>th</sup> PRECINCT

547 50TH AVENUE

LONG ISLAND CITY, NEW YORK 11101

**JOHN DOE #1 – 3**

100 CHURCH STREET

NEW YORK, NEW YORK 10007

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX-----  
OUMAR KONIPO,

Plaintiff,

-against-

**VERIFIED COMPLAINT**

Index No.:

CITY OF NEW YORK; NEW YORK CITY  
POLICE DEPARTMENT; POLICE DETECTIVE  
DENISE INGA, Tax # [REDACTED]; POLICE  
DETECTIVE STARLING BALLY, Shield # [REDACTED];  
SUPERVISOR DETECTIVE SQUAD ROUSE  
THOMAS, Tax # [REDACTED]; SERGEANT CRUZ, Tax  
# [REDACTED]; SCHOOL SAFETY AGENT PORTER  
DAVID, Tax # [REDACTED]; POLICE  
ADMINISTRATIVE AIDE SWEET, Tax # [REDACTED],  
AND "JOHN DOES 1-3" PERSONS EMPLOYED  
BY THE CITY OF NEW YORK,

Defendants.  
-----

OUMAR KONIPO (hereinafter the "Plaintiff"), by his attorneys, LEBEDIN KOFMAN, LLP, complaining against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE DETECTIVE DENISE INGA, Tax # [REDACTED], POLICE DETECTIVE STARLING BALLY, Shield [REDACTED], SUPERVISOR DETECTIVE SQUAD ROUSE THOMAS, Tax # [REDACTED], SERGEANT CRUZ, Tax # [REDACTED], SCHOOL SAFETY AGENT PORTER DAVID, Tax # [REDACTED], POLICE ADMINISTRATIVE AIDE SWEET, Tax # [REDACTED], AND "JOHN DOES 1-3", PERSONS EMPLOYED BY THE CITY OF NEW YORK, (hereinafter collectively "Defendants"), upon information and belief, alleges as follows:

**INTRODUCTION**

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violation of his rights under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution.

**PARTIES**

2. Plaintiff, OUMAR KONIPO, is a natural person residing at [REDACTED], Bronx, County of Bronx, State of New York; and was a resident of New York State during all relevant time of this action.

3. At all relevant times, Defendant CITY OF NEW YORK (hereinafter the “City”) was and is a municipal corporation incorporated and existing under the laws of the State of New York.

4. At all relevant times, the NEW YORK CITY POLICE DEPARTMENT (hereinafter “NYPD”) was and is an agency of Defendant City.

5. At all relevant times, Defendant City operated, controlled and managed NYPD.

6. At all relevant times, Defendant, DENISE INGA, Tax # [REDACTED] (hereinafter “Det. Inga”) was an officer, agent, and/or employee of Defendant City.

7. At all relevant times, Defendant, STARLING BALLY, Shield # [REDACTED] (hereinafter “Det. Bally”) was an officer, agent, and/or employee of Defendant City.

8. At all relevant times, Defendant, ROUSE THOMAS, Tax # [REDACTED] (hereinafter “SDS Thomas”) was an officer, agent, and/or employee of Defendant City.

9. At all relevant times, Defendant, SERGEANT CRUZ, Tax # [REDACTED] (hereinafter “Sgt. Cruz”) was an officer, agent, and/or employee of Defendant City.

10. At all relevant times, Defendant, PORTER DAVID, Tax # [REDACTED] (hereinafter “SSA David”) was an officer, agent, and/or employee of Defendant City.

11. At all relevant times, Defendant, POLICE ADMINISTRATIVE AIDE SWEET, Tax # [REDACTED] (hereinafter “PAA Sweet”) was an officer, agent, and/or employee of Defendant City.

12. At all relevant times, the names of Defendants “JOHN DOES 1-3” (hereinafter the “Officers”) are fictitious, and are intended to be individuals engaged in law enforcement, who were involved in the arrest of Plaintiff and violated Plaintiff’s rights, whose names are presently unknown to Plaintiff.

13. At all relevant times, Defendant Officers were officers, agents and/or employees of Defendant City.

14. At all relevant times, Defendants, Det. Inga, Det. Ballys, SDS Thomas, Sgt. Cruz, SSA David, PAA Sweet, and Officers were each individually hired, trained, supervised and retained by Defendant City, including its agencies, and all supervisory officers, agents, employees, and/or contractors of Defendant City.

15. At all relevant times, Defendants were involved in violating Plaintiff’s rights, and individuals who acted in concert with them, acted or failed to act, as alleged herein, toward Plaintiff under color of the statutes, ordinances, customs, policies, procedures, rules, and/or usage of the State and City of New York, and within the scope of their employment.

16. Defendants, Det. Inga, Det. Ballys, SDS Thomas, Sgt. Cruz, SSA David, PAA Sweet, and Officers are sued herein in both their individual and official capacities.

### **FACTS**

17. The facts alleged in this complaint are based upon the personal observations of Plaintiff regarding events that took place in his presence, and upon information and belief, the sources thereof are documents prepared in connection with the arrest of Plaintiff and public documents and information relating thereto which are presently available to Plaintiff. The aforesaid documentary evidence is presently incomplete, as it does not include numerous

documents and exhibits; therefore, the complaint has been prepared without the benefit of full discovery.

**The Incident of September 20, 2017**

18. On September 20, 2017, at around 9:00 a.m., Plaintiff received a call from an NYPD detective claiming that he was involved in a car accident. The detective stated that he needed to show the Plaintiff photos of the alleged accident and the Plaintiff's car so he requested that the Plaintiff provide his address so that he may bring the photos to the Plaintiff, the Plaintiff agreed and provided his address to the NYPD detective.

19. That same day, after the conclusion of the phone call, the detective arrived at the Plaintiff's residence, located at [REDACTED], Bronx, New York, and requested that the Plaintiff come outside to see the alleged photos. Plaintiff complied with the request and went outside the front of his apartment building. Upon arriving outside, the detective called out the Plaintiff asking him if his was named Oumar, to which the Plaintiff responded in the affirmative. The detective then indicated to the Plaintiff that he should approach him and his unmarked vehicle, which was parked in front of the building, for further discussion. Upon approaching the detective, the detective inquired as to whether or not the Plaintiff had any ID on him, the Plaintiff responded in the affirmative and subsequently produced his driver's license to the detective for his review.

20. Upon confirming that the Plaintiff was in fact who he said he was, two other detectives emerged from the unmarked van and proceeded to surround the Plaintiff as he is standing in front of the first detective. The initial detective demanded that the Plaintiff get in the van, when the Plaintiff asked why he was being ordered to go into the van, the detectives refused to answer. The detectives then proceeded to forcibly grab the Plaintiff and throw him into the back of the van causing him to hit his head very hard on the back seat. Plaintiff was taken to the 108<sup>th</sup>

Precinct, located at 547 50th Avenue, Long Island City, New York 11101, where he was wrongfully and unlawfully searched, seized, detained, and arrested by Defendants, their agents, servants, and/or employees.

21. Plaintiff was unlawfully detained for approximately thirty – two (32) hours starting on or about September 20, 2017 to on or about September 21, 2017. While being unlawfully detained Plaintiff was denied access to a bathroom for hours on end despite repeated requests from the Plaintiff to the Defendants to take him to the bathroom while in their custody. Further Plaintiff was interrogated by a detective that refused to take him to the bathroom, despite the Plaintiff requesting that she do so. Plaintiff was held at the station for multiple hours on end before he was transferred to Central Booking. Plaintiff was then subsequently held at Central Booking overnight and all day before he was released without any formal charges being pressed against him.

22. At all times relevant to this action, Defendants acted intentionally, willfully, knowingly, negligently, and with reckless disregard for, and deliberate indifference to the rights of Plaintiff.

23. The acts of Defendants prior to and during the course of the Arrest of Plaintiff were the direct result of the failure of Defendant City to properly hire, train, supervise, monitor, and discipline its officers, agents, employees and/or contractors.

24. The acts of Defendants prior to and during the course of the Arrest of Plaintiff were the direct result of policies, practices, and customs developed, implemented, enforced, encouraged, sanctioned, or tolerated by Defendant City.

25. As a result of the aforesaid acts or omissions of Defendants, Plaintiff sustained personal, physical, and emotional injuries and losses including, pain and suffering, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, trauma, shock, fear,



humiliation, embarrassment, shame, indignity, damage to his reputation, professional and economic losses, and financial costs and expenses.

26. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts that may otherwise have jurisdiction.

### **CAUSES OF ACTION**

#### **FEDERAL CLAIMS**

##### **FIRST CAUSE OF ACTION** **MUNICIPAL LIABILITY "MONELL" CLAIM**

27. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs 1 through 26 above with the same force and effect as if herein set forth.

28. Defendants Det. Inga, Det. Ballys, SDS Thomas, Sgt. Cruz, SSA David, PAA Sweet, and John Does 1 through 3, individually and collectively, within the scope of their employment and authority and under color of State Law, engaged in conduct which constituted customs, policies, procedures, rules, or usages of the NYC and which were in violation of the rights, privileges, and immunities of Plaintiff, a citizen of the United States and resident of the State of New York, as secured by the United States Constitution.

29. The aforesaid customs, policies, procedures, rules, or usages included but were not limited to: failure to properly investigate before effecting an arrest; utilizing unnecessary excessive force, failure to ensure that use of force by police officers is properly reported and investigated; failure to prevent and intervene foreseeable harm; failure to appropriately discipline police officers who utilize unnecessary and excessive force, as well as those who supervise such officers; failure to implement measures to ensure that officers are appropriately supervised by qualified and well-

trained staff; and failure to intervene when employees, officers, agents, and / or contractors violate well-established statutory and constitutional rights.

30. The aforesaid unlawful policies and practices in tolerating such misconduct resulted in the subject Arrest rendering Defendant NYC liable to Plaintiff pursuant to Monell v. City of New York, 436 U.S. 658 (1978), and under 42 U.S.C. §1983.

31. The aforesaid conduct was consistent with the institutionalized practices of NYPD which were known and previously sanctioned by Defendant NYC.

32. Despite knowledge of the institutionalized practices of the NYPD, Defendant NYC took no effective actions to end or prevent such practices.

33. Defendant NYC had prior notice of the injurious actions and practices of Defendants Det. Inga, Det. Ballys, SDS Thomas, Sgt. Cruz, SSA David, PAA Sweet, and John Does 1 through 3, but took no effective actions to end or prevent the aforesaid Defendants from committing such practices.

34. Defendant NYC had prior notice that Det. Inga, Det. Ballys, SDS Thomas, Sgt. Cruz, SSA David, PAA Sweet, and John Does 1 through 3, had inadequate training regarding the applicable provisions of the Penal Law of the State of New York, and Departmental policy, other applicable laws and federal and state statutory and constitutional protections, but took no effective actions to ensure that he aforesaid Defendants were provided with adequate or appropriate training.

35. Defendant NYC authorized, tolerated, and ratified the misconduct of employees, officers, agents, and / or contractors, and of Det. Inga, Det. Ballys, SDS Thomas, Sgt. Cruz, SSA David, PAA Sweet, and John Does 1 through 3, specifically, by failing to: discipline employees, officers and agents; take adequate precautions in screening, hiring, educating, informing, training, supervising, promoting, and retaining employees, officers, agents; and failing to establish and

maintain a meaningful system for responding to complaint of misconduct, all of which constitute deliberate indifference by Defendant NYC to Plaintiff's rights secured by the United States Constitution, and deliberate indifference to the physical safety and well-being of Plaintiff.

36. As a direct and proximate cause of Defendants' acts and / or omissions, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

37. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendant NYC liable to Plaintiff for punitive damages.

38. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages and for Plaintiff's attorney's fees pursuant to 42 U.S.C. § 1988.

SECOND CAUSE OF ACTION  
PURSUANT to 42 U.S.C. § 1983 (FALSE ARREST)

39. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs 1 through 38 above with the same force and effect as if herein set forth.

40. At all times relevant herein the conduct of the Defendants was subject to 42 U.S.C. §§ 1983, 1985, 1986, and 1988.

41. The detention and arrest of Plaintiff without probable cause and without a lawful warrant was an abuse of power which constituted a seizure within the meaning of the Fourth Amendment of the United States Constitution and was an act taken Det. Inga, Det. Ballys, SDS Thomas, Sgt. Cruz, SSA David, PAA Sweet, and John Does 1 through 3 with a deliberate indifference to Plaintiff's rights and privileges. The seizure and deprivation of Plaintiff's liberty

was unreasonable and without due process of law, in violation of the Fourth and Fourteenth Amendments of the United States Constitution.

42. Acting under the color of law, Defendants achieved a denial of Plaintiff's rights, privileges or immunities secured by the United States Constitution or by Federal law, to wit:

- a. By depriving Plaintiff of his liberty without due process of law, by taking Plaintiff into custody and holding him there against Plaintiff's will.
- b. By making an unreasonable search and seizure of Plaintiff's property without due process of law.
- c. By conspiring for the purpose of impeding and hindering the due course of justice, with intent to deny Plaintiff equal protection of laws.
- d. By refusing or neglecting to prevent such deprivations and denials to Plaintiff thereby depriving Plaintiff of the rights, privileges, and immunities as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

43. Defendant NYC and NYPD negligently trained Defendants Det. Inga, Det. Ballys, SDS Thomas, Sgt. Cruz, SSA David, PAA Sweet, and John Does 1 through 3.

44. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney's fees, damages to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

THIRD CAUSE OF ACTION  
PURSUANT to 42 U.S.C. § 1983 (EXCESSIVE FORCE)

45. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs 1 through 44 above with the same force and effect as if herein set forth.

46. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

47. That Defendants had no legal cause or reason to use excessive force in effectuating Plaintiff's arrest.

48. That Defendants violated Plaintiff's Fourth and Fourteenth Amendment right to be free from unreasonable seizure when they used excessive force against him.

49. That at the time of the arrest or while in custody, Plaintiff did not pose a threat to the safety of the arresting officers.

50. That Plaintiff did not actively resist arrest or attempt to evade arrest.

51. The Defendant City, through its officers, agents, and employees, unlawfully subjected Plaintiff to excessive force while effectuating his arrest.

52. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

53. That by reason of Defendants' acts and omissions, acting under color of law and within the scope of Defendants' authority, in gross and wanton disregard of Plaintiff's rights, subjected Plaintiff to excessive force while effectuating his arrest, in violation of Plaintiff's rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

54. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of Plaintiff's civil rights, including but not limited to the right to be free from the application of excessive force.

55. That upon information and belief, in 2017, Defendants had a policy or routine practice of using excessive force when effectuating arrests.

56. That upon information and belief, it was the policy and/or custom of Defendant City to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

57. That as a result of the above described policies and customs, the officers, staff, agents and employees of Defendant City, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

58. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant City to the constitutional rights of arrestees and were the cause of the violations of Plaintiff's rights alleged herein.

59. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, and economic damages including attorney's fees, damage to reputation, shame, humiliation, and indignity. All said injuries may be permanent.

FOURTH CAUSE OF ACTION  
PURSUANT to 42 U.S.C. § 1983 (DETENTION AND CONFINEMENT)

60. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs 1 through 59 above with the same force and effect as if herein set forth.

61. As a result of Defendants' concerted unlawful and malicious detention and confinement of Plaintiff, Defendants deprived Plaintiff of both his right to liberty without due process of law and his right to equal protection of the laws, and the due course of justice was

impeded in violation of the Fifth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. 1983.

62. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney's fees, damages to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

FIFTH CAUSE OF ACTION  
PURSUANT to 42 U.S.C. § 1983 (REFUSING OR NEGELECTING TO PREVENT)

63. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs 1 through 62 above with the same force and effect as if herein set forth.

64. At all times relevant to the complaint, Det. Inga, Det. Ballys, SDS Thomas, Sgt. Cruz, SSA David, PAA Sweet, and John Does 1 through 3, as police officers were acting under the direction and control of Defendant NYC and NYPD.

65. Acting under the color of law and pursuant to official policy Det. Inga, Det. Ballys, SDS Thomas, Sgt. Cruz, SSA David, PAA Sweet, and John Does 1 through 3, Defendant NYC and NYPD knowingly, recklessly or with gross negligence failed to instruct, supervise, control, and discipline on a continuing basis Defendant police officers in their duties to refrain from:

- a. Unlawfully and maliciously harassing a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities;
- b. Unlawfully and maliciously arresting, imprisoning, and prosecuting a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities;

- c. Conspiring to violate the rights, privileges, and immunities guaranteed to Plaintiff by the Constitution and the laws of the United States and the laws of the State of New York; and
- d. Otherwise depriving Plaintiff of his constitutional and statutory rights, privileges and immunities.

66. Defendant NYC and NYPD had knowledge of or had they diligently exercised their duties to instruct, supervise, control, and discipline on a continuing basis, should have knowledge that the wrongs conspired to be done, as heretofore alleged, were about to be committed. Defendant NYC and NYPD had the power to prevent or aid in preventing the commission of said wrongs, could have done so by reasonable diligence, and knowingly, recklessly, or with gross negligence failed or refused to do so.

67. Defendant NYC and the NYPD directly or indirectly under color of law approved or ratified the unlawful deliberate, malicious, reckless, and wanton conduct of Defendant police officers heretofore described.

68. As a direct and proximate cause of the negligent and intentional acts of Defendant NYC and the NYPD as set forth in paragraphs 1 to 67 above, Plaintiff suffered physical injury, loss of income, and severe mental anguish in connection with the deprivations of his constitutional and statutory rights guaranteed by the Fifth and Fourteenth Amendments of the Constitution of the United States and protected by 42 U.S.C. § 1983.

69. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney's fees, damage to reputation, shame, humiliation, and indignity. All of the said injuries may be permanent.



SIXTH CAUSE OF ACTION  
PURSUANT to 42 U.S.C. § 1983 (MALICIOUS PROSECUTION)

70. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs 1 through 69 above with the same force and effect as if herein set forth.

71. That Defendants with malicious intent, arrested Plaintiff and initiated criminal proceedings despite the knowledge that Plaintiff had committed no crime.

72. That all charges against Plaintiff have been dismissed.

73. That there was no probable cause for the arrests and criminal proceedings. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of Plaintiff's rights, deprived Plaintiff of his liberty when they maliciously prosecuted him and subjected him to unlawful, illegal and excessive detentions, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

74. That upon information and belief, Defendants had a policy and/or custom of maliciously prosecuting individuals despite the lack of probable cause. Thus, as a result of the above described policies and customs, Plaintiff was maliciously prosecuted despite the fact that he had committed no violation of the law.

75. That upon information and belief, the policy and/or custom of Defendant City to inadequately hire, train, supervise, discipline and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.

76. That as a result of the above described policies and customs, Defendant City, its staff, agents and employees of Defendant City believe that their actions would not be properly

monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

77. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant City to the constitutional rights of arrestees and were the cause of the violations of Plaintiff's rights alleged herein.

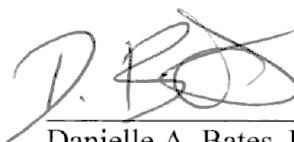
78. That in so acting, Defendant City abused its power and authority as policymaker of the NYPD under the color of State and/or local law.

79. That upon information and belief, in 2017, Defendant City had a policy or routine practice of alleging facts against persons for the purpose of charging crimes they did not commit.

80. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney's fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

**WHEREFORE**, Plaintiff demands judgment against Defendants CITY OF NEW YORK; NEW YORK CITY POLICE DEPARTMENT; POLICE DETECTIVE DENISE INGA, Tax # [REDACTED]; POLICE DETECTIVE STARLING BALLY, Shield # [REDACTED]; SUPERVISOR DETECTIVE SQUAD ROUSE THOMAS, Tax # [REDACTED]; SERGEANT CRUZ, Tax # [REDACTED]; SCHOOL SAFETY AGENT PORTER DAVID, Tax # [REDACTED]; POLICE ADMINISTRATIVE AIDE SWEET, Tax # [REDACTED] AND "JOHN DOES 1-3", PERSONS EMPLOYED BY THE CITY OF NEW YORK, individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: New York, New York  
September 18, 2020

A handwritten signature in black ink, appearing to read 'D. Bates', is written over a horizontal line.

Danielle A. Bates, Esq.  
LEBEDIN KOFMAN, LLP  
Attorneys for Plaintiff  
OUMAR KONIPO  
26 Broadway, 27<sup>th</sup> Floor  
New York, New York 10004  
T: (212) 500-3273  
F: (855) 696-6848  
E: [dbates@lebedinkofmanlaw.com](mailto:dbates@lebedinkofmanlaw.com)

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am a member of Lebedin Kofman, LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are conversations with Plaintiff, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman, LLP maintains its offices.

Dated: New York, New York  
September 18, 2020

A handwritten signature in black ink, appearing to read 'D. Bates', is written over a horizontal line.

Danielle A. Bates, Esq.